VENDOR SERVICE CONTRACT

Maple Manor | Memphis, TN

Owner	Maple Manor Owner LLC
Contractor	Spectrum Roofing
Services	roof repair and maintenance
Property	Maple Manor
Effective Date	August 4, 2020

1. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform roof repair and maintenance at Maple Manor in accordance with the specifications attached hereto. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

2. Term and Termination. This Contract commences on the Effective Date for a term of 3 months and may be terminated by either party on thirty days' written notice. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

3. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of TN.

4. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

5. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of TN. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

6. Standard of Performance. Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

7. Indemnification. Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only